

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

Record class: ministerial appellate opening notice for the Ellison interlocutory appeal.

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

No. SYN-CA4-26-CV-4104 · Opening notice

Appellate Docketing Notice and Jurisdictional Directions

Issued January 21, 2026.

The Clerk has opened *Nolan Rusk v. Mara Ellison* from the notice filed January 16, 2026, in *Ellison v. Rusk*, Civil Action No. SYN-WDVA-25-CV-0733. Officer Nolan Rusk is the appellant; Mara Ellison is the appellee. The notice identifies the district court's January 9 memorandum opinion and order denying Rusk's motion for summary judgment on qualified-immunity grounds.

This is an interlocutory civil appeal. Docketing is a ministerial act and does not establish that every argument in a later filing falls within collateral-order jurisdiction. The challenged opinion separately described a factual-sufficiency ruling and a legal immunity ruling on stated plaintiff-favorable assumptions. Counsel must preserve that distinction in the docketing statement and briefs.

Counsel shall enter appearances and file disclosure statements by January 23. Appellant's civil docketing statement is due January 28. Every submission must bear the appellate number shown above and identify the district action accurately. Opening this file neither stays district-court proceedings nor decides the truth of the competing accounts of the February 3, 2025 encounter.

Jurisdictional and record directions

The district clerk transmitted the notice of appeal, the January 9 opinion and order, and the current civil docket. The transcript-order form and record designation filed January 26 report that no additional summary-judgment hearing transcript is required. The Clerk will review the certified district record before setting merits dates and will issue a separate record-complete order when that review is finished.

The parties shall identify any transmission defect promptly. A request to correct an omission must concern material actually before the district court; it may not add new evidence or improve a party's factual presentation. Native body-camera media remain subject to the custody and presentation limits established below. The appendix may reproduce authenticated transcripts, frame maps, and admitted still-image analyses without claiming that unseen pixels resolve the critical obstruction.

The parties are directed to address appellate jurisdiction before the merits. Any argument asking this Court to decide whether Ellison struck Rusk or reached toward his duty belt must explain how that request presents a legal question rather than a dispute about evidentiary sufficiency. Arguments accepting the facts assumed by the district court should state those assumptions expressly. These directions do not forecast a jurisdictional disposition or a qualified-immunity result.

Electronic notice issued to counsel shown on the transmitted docket. By direction of the Clerk.